

		Lastly, considering the inordinate time expended by the Court in addressing the parties' exceptionally onerous discovery disputes, all further discovery issues in this matter will be heard before a Discovery Reference, either by the parties' stipulation or by Court Order. The Court orders the Clerk to give notice.
3.	<u>30-2021-01230129-CU-OE-CJC</u> Santa Ana Police Officers Association vs. City of Santa Ana	Before the Court are two (2) motions: Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) and Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 892). On March 10, 2026, Defendant City of Santa Ana ("Defendant") filed the instant Motions against Plaintiff Gerry Serrano ("Plaintiff"). ROAs 883, 892. Defendant requests that the Court grant the Motion to Compel Production (ROA 883) and order the following: 1. Disclosure to the [Defendant] of all records produced to Plaintiff [] in response to his Pitchess motion filed on April 14, 2025 (ROA #611), as ordered by the Court (ROAs #734, 763) subject to a protective order; 2. The disclosure of these records must occur within ten (10) days of entry of the signed protective order. ROA 883. Additionally, Defendant requests that the Court grant the Motion to Compel Production (ROA 892) and order the following: 1. Compel Plaintiff [] to produce records concerning his efforts to challenge CalPERS' determinations regarding his pension, to increase or preserve pension benefits, and the Defendant's responses to those efforts, to the extent he has asserted Pitchess objections to the production or use of such records, followed by an in-camera review and subject to a protective order; 2. Compel Plaintiff [] to produce records he expressly identified but withheld from production in response to Defendant's [] Requests for Production of Documents, Set One, as reflected in his Pitchess

	privilege log dated October 27, 2025, followed by an in-camera review and subject to a protective order; and 3. The disclosure of these records must occur within ten (10) days of entry of the Court’s order and a signed protective order. ROA 892. Plaintiff requests that the Court deny Defendant’s Motion for Discovery of Personnel and Other Records of Plaintiff. ROA 977. Additionally, Plaintiff requests that the Court deny Defendant’s Motion for Discovery of Personnel Records (Further Production) and impose sanctions in the amount of \$3,500 pursuant to Code of Civil Procedure §§ 2023.030, 2031.310, 2030.090, or 2030.290. ROA 979 I. Discovery Cutoff Date California Code of Civil Procedure Section 2024.020 specifies that “[e]xcept as otherwise provided in this chapter, any party shall be entitled <i>as a matter of right</i> to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Cal. Civ. Proc. Code § 2024.020 (emphasis added). “Thus, if a party properly notices a discovery motion to be heard on or before the discovery motion cutoff date, that party has a <i>right</i> to have the motion heard.” <i>Pelton-Shepherd Indus., Inc. v. Delta Packaging Prods., Inc.</i>, 165 Cal. App. 4th 1568, 1586 (2008) (emphasis original). Here, the discovery cutoff date was March 20, 2026, and the last day for motions to be heard was April 5, 2026. <i>See</i> ROAs 787, 800. Defendant filed its motions on March 10, 2026, with a hearing date reserved for April 1, 2026. <i>See</i> ROAs 883, 892. Accordingly, the motions are timely, and Defendant is entitled to a hearing on the merits. II. Pitchess Motion Standard Peace officer personnel records and information obtained from those records are confidential and may not be
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		disclosed in any criminal or civil proceeding, except pursuant to a two step procedure referred to as a <i>Pitchess</i> motion. Cal. Pen. Code, § 832.7(a); Cal. Evid. Code § 1043; <i>Cnty. of Los Angeles v. Super. Ct.</i>, 219 Cal. App. 3d 1605, 1610 (1990). Personnel records are defined as: any file maintained under that individual's name by his or her employing agency and containing records relating to any of the following, [among others]: (1) [p]ersonal data, including marital status, family members, educational and employment history, home addresses, or similar information; (2) [m]edical history; (3) [e]lection of employee benefits; or (4) [e]mployee advancement, appraisal, or discipline. Cal. Pen. Code §§ 832.8(a)(1), (2), (3), (4). Good cause for discovery exists when the defendant shows both “ ‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.” <i>City of Santa Cruz v. Municipal Ct.</i>, 49 Cal. 3d 74, 84 (1989); <i>Warrick v. Super. Ct.</i>, 35 Cal. 4th 1011, 1019 (2005); <i>see</i> Cal. Evid. Code § 1043(b)(3). To show the requested information is material, the declaration must contain a “ ‘specific factual scenario’ which provide[s] sufficient information to allow the trial court to assess whether the records [are] material[.]” <i>City of San Jose v. Super. Ct.</i>, 67 Cal. App. 4th 1135, 1146 (1998). In other words, the moving party must articulate how the discovery being sought will support his claim or proposed defense, or how it will impeach the officer’s version of events. <i>See Garcia v. Superior Court</i>, 42 Cal. 4th 63, 71 (2007). “This good cause showing is a ‘relatively low threshold for discovery.’ (Citation omitted). Assertions in the affidavits ‘may be on information and belief and need not be based on personal knowledge (citation omitted), but the information sought must be requested with sufficient specificity to preclude the possibility of a [party] simply casting about for any helpful information.’ “ <i>Garcia, supra</i>, 42 Cal. 4th at 70. If the moving party has established good cause, the trial
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court proceeds to the second step—an in chambers examination of the records to determine whether they have any relevance to the issues presented in the current proceedings. Cal. Evid. Code § 1045(b). “In the in camera hearing, the court determines whether the relevant information or documents are precluded from disclosure by Evidence Code section 1045, subdivisions (b) and (c).

III. Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) and Declaration (ROA 893)

In its Motion, Defendant identifies the types of records sought and contends that the documents described in its Motion are in the possession, custody, or control of Plaintiff and/or his counsel and have been withheld based on Plaintiff’s asserted Pitchess objections. ROAs 883, 893.

As for good cause, in its Declaration, Defendant argues that in Plaintiff’s Complaint, he alleges that Defendant retaliated against him and took adverse actions motivated by hostility toward him and his conduct as a union representative. ROA 893. Defendant further argues that these allegations place Defendant’s motivations and Plaintiff’s conduct at issue. *Id.* Lastly, Defendant asserts that it seeks production only of documents Plaintiff has already identified and withheld based on asserted Pitchess objections; and does not seek to require Plaintiff to conduct new searches or recreate documents. *Id.*

In this Court’s view, Defendant’s request is misdirected to the extent it seeks Pitchess review of documents purportedly in the possession of Plaintiff or his counsel, rather than from the appropriate custodial agency as contemplated by Evidence Code sections 1043–1045.

Further, while Defendant identifies the types of records sought, Defendant’s Declaration fails to establish good cause with the required specificity. Defendant relies on general assertions regarding relevance to motive, credibility, and conduct, without articulating a specific logical connection between the requested records and the subject matter of the pending litigation.

Accordingly, Defendant has not established good cause, and the Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) is **DENIED**.

IV. Motion to Compel Production (ROA 892) and Declaration (ROA 870).

In its Motion, Defendant identifies the types of records sought and contends that the documents described in its Motion are in possession, custody, or control of the custodian(s) of records for the City of Santa Ana including the Santa Ana Police Department and Human Resources Department. ROAs 870, 892.

As to good cause, in its Declaration, Defendant contends that the production of these records is necessary for deposition preparation, depositions, motion practice, trial, and for its overall defense. ROA 870. Defendant further argues that allowing both parties to rely on the same court reviewed materials promotes fairness, efficiency, and orderly adjudication of Plaintiff's claims. *Id.*

Additionally, Defendant asserts that Plaintiff has put these records at issue by filing his complaint against the City and referencing these matters in support of his claims and that makes reciprocal discovery appropriate. ROA 870. Defendant's candidly admit that, "[Defendant's] position has not been persuasive with the Court and/or Counsel for Plaintiff." ROA 870.

While Defendant identifies the types of records sought and the custodians believed to possess them, Defendant's Declaration yet again fails to establish good cause with the required specificity. General assertions that the records are relevant to defense preparation or that reciprocal discovery would promote fairness do not satisfy the statutory requirements. Nor does Plaintiff's prior Pitchess motion or the Court's earlier in camera review relieve Defendant of its independent obligation to establish good cause.

Accordingly, Defendant has not established good cause, and Motion for Discovery of Personnel and Other Records

	of Plaintiff (ROA 892) is DENIED. V. Sanctions California Code of Civil Procedure Section 2023.030 provides that “[t]he [C]ourt <i>may</i> impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.” Cal. Civ. Proc. Code § 2023.030 (emphasis added). The Court exercises its discretion to not impose sanctions on Defendant’s counsel. Accordingly, Defendant’s Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 883) and Motion for Discovery of Personnel and Other Records of Plaintiff (ROA 892) are DENIED. Plaintiff to give notice.
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